

25NWLC10719 25NWLC10719

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-08-03

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Case Number: 25NWLC10719 Hearing Date: August 3, 2026 Dept: Y

25NWLC10719: WELLS FARGO BANK, NA vs SARAH W ESCOBAR, AN INDIVIDUAL

Tentative Ruling:

The Court has read and reviewed all moving documents filed by Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") in support of its motion for summary judgment, including the separate statement and supporting evidence.

Plaintiff's motion for summary judgment was filed on November 10, 2025 and set for hearing on February 9, 2026. On December 8, 2025, the Court continued the hearing to August 3, 2026. No opposition has been filed by Defendant Sarah W. Escobar ("Defendant").

The Court finds that Plaintiff has met the initial burden of showing that there are no defenses to its cause of action for breach of contract by proving each element of the cause of action entitling Plaintiff to summary judgment.

Plaintiff has shown with admissible evidence that Defendant applied for and executed a personal loan agreement with Plaintiff; Defendant agreed to repay the loan pursuant to the terms of the agreement; Plaintiff performed under the terms of the agreement including funding the loan; the loan statements for the subject account were sent to Defendant; and there is no record of any unresolved disputes on subject personal loan account. (Plaintiff's Separate Statement, Undisputed Material Facts Nos. [UMF] 1-7.) The evidence also shows that Defendant's last payment on the subject account was on July 18, 2024 and that Defendant owes Plaintiff the unpaid balance on the subject account of \$15,024.98. (Id., UMF Nos. 8-11.)

The burden having shifted to Defendant, the Court finds Defendant has failed to set forth specific facts showing that a triable issue of material fact exists as to any of the elements of the causes of action for breach of contract or that there is any defense thereto required by Code of Civil Procedure section 437c(p)(1).

The Court finds that Plaintiff is entitled to judgment as a matter of law and GRANTS Plaintiff's Motion for Summary Judgment as to its cause of action for breach of contract.

Judgment is hereby entered in favor of Plaintiff Wells Fargo Bank, N.A. and against Defendant Sarah W. Escobar in the principal sum of \$15,024.98, plus court costs in the amount of \$920.00 for a total judgment in the sum of \$15,944.98.

The Proposed Order and Proposed Judgment will be signed by the Court.

Plaintiff to give notice.